



HeXTalent

The Humanistic eXchange

REFERRAL AGREEMENT

Between HeX Talent and Heart Talent

HeX Talent Pty Ltd · Heart Recruitment Pty Ltd

PREPARED FOR	Heart Recruitment Pty Ltd
PREPARED BY	Jeff Teale, Founder & Director, HeX Talent
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HEX TALENT PTY LTD · SUNSHINE COAST, QUEENSLAND

THE AGREEMENT

Referral Agreement

HeX Talent Pty Ltd ABN 51 656 809 657 **HEX TALENT**

trading as HeXTalent

Heart Recruitment Pty Ltd ABN 85 639 318 648 **HEART TALENT**

trading as Heart Talent

DATE [/ /]

HeX Talent refers recruitment opportunities to Heart Talent. Heart Talent pays HeX Talent 20% of the resulting placement fee. These are the terms.

1. Scope

- 1.1 The arrangement is non-exclusive. HeX Talent need not refer anything, and Heart Talent need not accept anything. Both may work with anyone else.
- 1.2 HeX Talent introduces the client and nothing more. Heart Talent is solely responsible for its recruitment services and its contract with the client, and HeX Talent cannot negotiate, quote or commit Heart Talent to anything.

2. Making a referral

- 2.1 HeX Talent refers a client in writing, giving the client's name, a contact person, and the role to be filled. "In writing" includes email, text message and any other recorded electronic message.
- 2.2 Heart Talent must reply within **5 business days** of the referral being sent, and either accept the referral or reject it.
- 2.3 Heart Talent may only reject a referral if the client is already its client (engaged within the last 12 months) or is already in a live sales process it can evidence from its CRM, or if it declines the client for a genuine commercial or compliance reason. It must provide that evidence within 5 business days.
- 2.4 If Heart Talent does not reply within 5 business days, the referral is accepted.
- 2.5 Where two referrers introduce the same client, the first referral received wins and only one fee is payable.

3. The fee

- 3.1 Heart Talent pays HeX Talent **20% of the placement fee**, excluding GST and net of any discount agreed with the client before the placement fee is first invoiced. At-cost disbursements such as advertising and background checks are excluded.
- 3.2 The fee applies to **every placement** with an accepted client made within **12 months** of acceptance, whatever the role and whoever the candidate.
- 3.3 For contract, temporary or casual placements, the fee is 20% of Heart Talent's gross margin (client invoice less pay rate and on-costs), invoiced monthly for the life of the engagement, including extensions.
- 3.4 Heart Talent must not discount, restructure or recharacterise a placement fee in order to reduce the referral fee, or route work around this agreement to avoid it.
- 3.5 GST is payable in addition to the fee against a valid tax invoice.

4. Payment

- 4.1 Heart Talent must notify HeX Talent in writing within **5 business days** of:
 - 1. a placement being confirmed, including the client, the role, the candidate's start date and the placement fee; and
 - 2. Heart Talent receiving payment of the placement fee from the client.
- 4.2 HeX Talent then invoices, and Heart Talent pays **within 7 days of the invoice date**, in full, without set-off.
- 4.3 The referral fee is payable as a **single payment**. Where the client pays Heart Talent in instalments, HeX Talent may invoice the full referral fee once Heart Talent receives the first instalment, and clause 4.2 applies to that invoice.
- 4.4 Overdue amounts carry interest at 2% above the RBA cash rate, plus reasonable recovery costs.

5. The fee is not refundable

- 5.1 The referral fee is earned when the placement is made. Once payable, it is not refundable in whole or in part.
- 5.2 If the candidate does not start, leaves, or is terminated, or if Heart Talent refunds, credits, discounts or waives any part of the placement fee to the client for any reason — including under a guarantee, replacement arrangement or goodwill gesture — the referral fee is not reduced and HeX Talent is not required to repay any part of it.
- 5.3 Heart Talent bears the risk of its own guarantee and replacement terms with its clients.
- 5.4 The only circumstance in which no referral fee is payable is where the client never pays the placement fee at all and Heart Talent writes the amount off as a bad debt after reasonable recovery efforts. Heart Talent cannot rely on this where the non-payment results from its own breach, negligence or failure to invoice.

6. What each side promises

- 6.1 HeX Talent will refer honestly and in good faith, make no promises on Heart Talent's behalf about fees, timeframes or outcomes, and obtain the client contact's consent before passing on their details.
- 6.2 Heart Talent will handle referrals professionally, keep accurate records of placements, fees and payments, and on request (up to twice a year) provide enough of those records for HeX Talent to verify what it is owed. It will hold the licences and insurances its business requires.

7. Confidentiality and privacy

- 7.1 Each party keeps the other's client lists, candidate details, fee structures and the terms of this agreement confidential, and uses them only for this arrangement. This continues for 3 years after the agreement ends.
- 7.2 Both parties comply with the *Privacy Act 1988* (Cth) and the Australian Privacy Principles for any personal information shared, and notify the other within 48 hours of any suspected data breach affecting it.

8. Independent businesses

The parties are independent contractors. This is not a partnership, agency, joint venture or employment relationship, and neither can incur obligations for the other. Each is responsible for its own taxes, insurances, staff and costs, and keeps its own intellectual property.

9. Term and ending

- 9.1 This agreement starts when both parties sign and runs until ended.
- 9.2 Either party may end it on **30 days' written notice**, or immediately if the other commits a material breach it does not fix within 14 days, or becomes insolvent.
- 9.3 **Ending it does not cancel fees.** Heart Talent still owes the referral fee on any placement made within 12 months of a referral accepted before the end date, and clauses 3 to 7 keep applying to those placements.

10. Liability

- 10.1 HeX Talent gives no warranty about a referred client's suitability, solvency or conduct and is not liable to any client or candidate for Heart Talent's services.
- 10.2 Neither party is liable for indirect or consequential loss, loss of profit or loss of opportunity.
- 10.3 Each party's total liability is capped at the referral fees paid in the preceding 12 months. The cap does not apply to unpaid referral fees, breach of clause 7, fraud or wilful misconduct.
- 10.4 Nothing here limits rights that cannot be excluded under the *Competition and Consumer Act 2010* (Cth).

11. General

- 11.1 Notices go to the email addresses below.
- 11.2 If a dispute arises, the parties will meet within 10 business days and try to resolve it in good faith before starting proceedings, other than to recover an undisputed debt.
- 11.3 This agreement is governed by the law of Queensland.
- 11.4 It is the entire agreement between the parties on this subject. Changes must be in writing and signed by both.
- 11.5 It may be signed in counterparts and by electronic signature.

EXECUTION

Signed

Each party's authorised signatory confirms they have read this Referral Agreement and agree to be bound by its terms on behalf of the entity named.

Signed on behalf of Heart Recruitment Pty Ltd

ABN 85 639 318 648

SIGNATURE

PRINTED NAME

POSITION

DATE

EMAIL FOR NOTICES

Signed on behalf of Hex Talent Pty Ltd

ABN 51 656 809 657

SIGNATURE

Jeff Teale

PRINTED NAME

Founder & Director

POSITION

DATE

jeff@hextalent.com.au

EMAIL FOR NOTICES